PURCHASE AGREEMENT FOR GOODS AND SERVICES

Contract Number: MSF-2025-7834

Effective Date: January 15, 2025

PARTIES

This Purchase Agreement ("Agreement") is entered into as of the Effective Date by and between:

MICROSOFT CORPORATION
One Microsoft Way
Redmond, Washington 98052
United States of America
("Buyer" or "Microsoft")

AND

TECHCORE SOLUTIONS, INC.
2847 Innovation Drive, Suite 400
Austin, Texas 78741
United States of America
("Seller" or "TechCore")

Buyer and Seller are collectively referred to as the "Parties" and individually as a "Party."

RECITALS

WHEREAS, Seller is engaged in the business of providing enterprise software integration services, cloud infrastructure consulting, and custom application development;

WHEREAS, Buyer desires to purchase certain goods and services from Seller as described herein; and

WHEREAS, Seller agrees to provide such goods and services in accordance with the terms and conditions set forth in this Agreement.

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

ARTICLE 1: SCOPE OF GOODS AND SERVICES

1.1 Goods and Services. Seller shall provide to Buyer the following goods and services (collectively, the "Deliverables"):

(a) **Custom Software Modules:** Development of three (3) custom software integration modules designed to interface with Microsoft Azure cloud services, including API development, testing, and documentation.

(b) **Consulting Services:** Provision of cloud infrastructure consulting services totaling five hundred (500) hours of professional services, including architecture design, security auditing, and performance optimization recommendations.

(c) **Hardware Components:** Supply of specialized networking equipment including fifteen (15) enterprise-grade routers, thirty (30) managed switches, and associated cabling and mounting hardware as specified in Exhibit A.

(d) **Training Services:** Development and delivery of comprehensive training programs for Buyer's technical staff, including both in-person and virtual training sessions covering system integration, maintenance protocols, and best practices.

(e) **Maintenance and Support:** Provision of technical support and maintenance services for a period of twelve (12) months following final delivery and acceptance of all Deliverables.

1.2 Specifications. All goods and services shall conform to the specifications, requirements, and quality standards set forth in Exhibit A (Technical Specifications) and Exhibit B (Statement of Work) attached hereto and incorporated by reference.

1.3 Changes to Scope. Any changes to the scope of goods and services must be agreed upon in writing by both Parties through a formal Change Order process as described in Article 8.

ARTICLE 2: PURCHASE PRICE AND PAYMENT TERMS

2.1 Purchase Price. The total purchase price for the Deliverables shall be Two Million Eight Hundred Fifty Thousand Dollars ($2,850,000.00) (the "Purchase Price"), itemized as follows:

- Custom Software Modules: $1,200,000.00
- Consulting Services: $750,000.00
- Hardware Components: $650,000.00
- Training Services: $150,000.00
- Maintenance and Support: $100,000.00

2.2 Payment Schedule. Buyer shall pay Seller according to the following schedule:

(a) Twenty percent (20%) of the Purchase Price ($570,000.00) shall be paid within ten (10) business days of execution of this Agreement as a deposit.

(b) Thirty percent (30%) of the Purchase Price ($855,000.00) shall be paid upon completion and acceptance of Phase 1 deliverables as defined in Exhibit B.

(c) Thirty percent (30%) of the Purchase Price ($855,000.00) shall be paid upon completion and acceptance of Phase 2 deliverables as defined in Exhibit B.

(d) Twenty percent (20%) of the Purchase Price ($570,000.00) shall be paid upon final completion and acceptance of all Deliverables.

2.3 Invoicing. Seller shall submit invoices to Buyer in accordance with the Payment Schedule. All invoices shall include detailed descriptions of services rendered, goods delivered, hours worked, and applicable supporting documentation.

2.4 Payment Terms. Payment shall be made within thirty (30) days of Buyer's receipt of a valid invoice. Payments shall be made via wire transfer to the account designated by Seller.

2.5 Late Payments. Late payments shall accrue interest at a rate of one and one-half percent (1.5%) per month or the maximum rate permitted by law, whichever is less.

2.6 Taxes. The Purchase Price does not include any sales, use, excise, value-added, or other taxes. Buyer shall be responsible for all such taxes except taxes based on Seller's net income.

ARTICLE 3: DELIVERY AND ACCEPTANCE

3.1 Delivery Schedule. Seller shall deliver the Deliverables in accordance with the delivery schedule set forth in Exhibit B (Statement of Work). Time is of the essence with respect to delivery obligations.

3.2 Place of Delivery. Unless otherwise specified, all goods shall be delivered to Microsoft's facility located at:

Microsoft Technology Center
5600 148th Avenue NE
Redmond, Washington 98052

3.3 Title and Risk of Loss. Title to and risk of loss for all goods shall pass to Buyer upon delivery and acceptance at the designated delivery location. Seller shall bear all risks of loss or damage to goods until acceptance by Buyer.

3.4 Acceptance Testing. Buyer shall have thirty (30) days from delivery of each Deliverable to conduct acceptance testing. If the Deliverable conforms to the specifications and requirements, Buyer shall provide written acceptance. If the Deliverable does not conform, Buyer shall provide written notice of rejection specifying all deficiencies.

3.5 Rejected Deliverables. If Buyer rejects any Deliverable, Seller shall have thirty (30) days to correct the deficiencies and re-deliver. If Seller fails to cure deficiencies within this period, Buyer may, at its option, either (a) accept the non-conforming Deliverable with an equitable reduction in price, or (b) terminate this Agreement as provided in Article 10.

ARTICLE 4: WARRANTIES

4.1 Authority. Each Party warrants that it has full authority to enter into this Agreement and that the execution and performance of this Agreement will not violate any other agreement to which it is a party.

4.2 Goods Warranty. Seller warrants that all goods delivered hereunder shall:

(a) Be new, unused, and of merchantable quality; (b) Conform to all specifications and requirements set forth in this Agreement; (c) Be free from defects in materials and workmanship; (d) Be fit for the particular purposes for which they are intended; and (e) Comply with all applicable federal, state, and local laws and regulations.

4.3 Services Warranty. Seller warrants that all services shall be performed in a professional and workmanlike manner in accordance with industry standards and best practices.

4.4 Warranty Period. The warranty period for all goods shall be eighteen (18) months from the date of acceptance or twelve (12) months from the date of first use, whichever occurs first. The warranty period for services shall be twelve (12) months from the date of acceptance.

4.5 Warranty Remedies. If any goods or services fail to comply with the warranties during the warranty period, Seller shall, at Buyer's option and Seller's expense, either (a) repair or replace the non-conforming goods or re-perform the non-conforming services, or (b) refund the purchase price paid for such goods or services.

4.6 No Other Warranties. EXCEPT AS EXPRESSLY SET FORTH IN THIS ARTICLE 4, SELLER MAKES NO OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE.

ARTICLE 5: INTELLECTUAL PROPERTY RIGHTS

5.1 Ownership of Work Product. All work product, deliverables, inventions, discoveries, and materials created by Seller specifically for Buyer under this Agreement (collectively, "Work Product") shall be considered works made for hire, and Buyer shall own all right, title, and interest in and to such Work Product, including all intellectual property rights therein.

5.2 Assignment. To the extent any Work Product does not qualify as a work made for hire, Seller hereby assigns to Buyer all right, title, and interest in and to such Work Product, including all intellectual property rights therein.

5.3 Pre-Existing Materials. Seller retains all rights to any pre-existing materials, tools, utilities, or methodologies used in the performance of services hereunder. Seller grants Buyer a perpetual, irrevocable, worldwide, royalty-free license to use such pre-existing materials solely in connection with the Work Product.

5.4 Seller's Intellectual Property. Nothing in this Agreement shall transfer ownership of Seller's proprietary methodologies, processes, or general know-how that existed prior to this Agreement or was developed independently of this project.

5.5 Infringement Indemnity. Seller shall indemnify, defend, and hold harmless Buyer from any claims that any goods or services provided hereunder infringe upon any third-party intellectual property rights.

ARTICLE 6: CONFIDENTIALITY

6.1 Confidential Information. Each Party may have access to confidential and proprietary information of the other Party. "Confidential Information" means all information disclosed by one Party to the other, whether orally or in writing, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and circumstances of disclosure.

6.2 Non-Disclosure Obligations. Each Party agrees to:

(a) Hold all Confidential Information in strict confidence; (b) Not disclose Confidential Information to third parties without prior written consent; (c) Use Confidential Information only for purposes of performing obligations under this Agreement; (d) Protect Confidential Information using the same degree of care used to protect its own confidential information, but no less than reasonable care.

6.3 Exclusions. Confidential Information does not include information that: (a) is or becomes publicly available through no breach of this Agreement; (b) was rightfully known prior to disclosure; (c) is rightfully received from a third party without breach; or (d) is independently developed without use of Confidential Information.

6.4 Term. The confidentiality obligations shall survive termination of this Agreement and continue for five (5) years from the date of disclosure.

ARTICLE 7: REPRESENTATIONS AND COMPLIANCE

7.1 Compliance with Laws. Seller shall comply with all applicable federal, state, and local laws, regulations, and ordinances in performing its obligations under this Agreement, including but not limited to laws relating to labor, employment, environmental protection, data privacy, and export controls.

7.2 Licenses and Permits. Seller represents that it possesses all necessary licenses, permits, and authorizations required to provide the goods and services contemplated by this Agreement.

7.3 Data Privacy. Seller shall comply with all applicable data protection and privacy laws, including the California Consumer Privacy Act (CCPA) and other state privacy laws. Seller shall implement appropriate technical and organizational measures to protect personal data.

7.4 Anti-Corruption. Seller represents and warrants that it has not and will not, directly or indirectly, offer, promise, give, or authorize any payment or gift of money or anything of value to any government official or any other person for the purpose of obtaining or retaining business in connection with this Agreement.

7.5 Background Checks. Seller shall conduct appropriate background checks on all personnel who will have access to Buyer's facilities or confidential information.

ARTICLE 8: CHANGE ORDERS

8.1 Request for Changes. Either Party may request changes to the scope of goods and services by submitting a written Change Order request describing the proposed change in reasonable detail.

8.2 Change Order Process. Upon receipt of a Change Order request, the Parties shall negotiate in good faith regarding the proposed change, including any adjustments to the Purchase Price, delivery schedule, or other terms.

8.3 Written Agreement Required. No change shall be effective unless agreed to in writing by authorized representatives of both Parties.

8.4 Price Adjustments. If a change increases or decreases the cost of performance, an equitable adjustment to the Purchase Price shall be made.

ARTICLE 9: INDEMNIFICATION AND LIABILITY

9.1 General Indemnity. Seller shall indemnify, defend, and hold harmless Buyer, its affiliates, and their respective officers, directors, employees, and agents from and against any and all claims, damages, losses, liabilities, costs, and expenses (including reasonable attorneys' fees) arising out of or resulting from:

(a) Seller's breach of this Agreement; (b) Seller's negligence or willful misconduct; (c) Bodily injury or property damage caused by Seller's personnel or goods; (d) Violation of applicable laws by Seller.

9.2 Buyer's Indemnity. Buyer shall indemnify, defend, and hold harmless Seller from claims arising out of Buyer's breach of this Agreement or misuse of the Deliverables.

9.3 Limitation of Liability. EXCEPT FOR BREACHES OF CONFIDENTIALITY, INTELLECTUAL PROPERTY INFRINGEMENT, OR GROSS NEGLIGENCE, IN NO EVENT SHALL EITHER PARTY'S LIABILITY EXCEED THE TOTAL AMOUNT PAID OR PAYABLE UNDER THIS AGREEMENT.

9.4 Consequential Damages. NEITHER PARTY SHALL BE LIABLE FOR INDIRECT, INCIDENTAL, CONSEQUENTIAL, SPECIAL, OR PUNITIVE DAMAGES, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

ARTICLE 10: TERM AND TERMINATION

10.1 Term. This Agreement shall commence on the Effective Date and shall continue until all obligations have been fully performed, unless earlier terminated as provided herein.

10.2 Termination for Convenience. Buyer may terminate this Agreement for convenience upon thirty (30) days' written notice. Upon such termination, Buyer shall pay Seller for all goods delivered and services performed up to the effective date of termination, plus reasonable costs incurred in winding down performance.

10.3 Termination for Cause. Either Party may terminate this Agreement immediately upon written notice if the other Party:

(a) Materially breaches this Agreement and fails to cure within thirty (30) days of written notice; (b) Becomes insolvent or files for bankruptcy; (c) Ceases to conduct business in the normal course.

10.4 Effect of Termination. Upon termination:

(a) Seller shall immediately cease all work; (b) Seller shall deliver all completed and partially completed Work Product to Buyer; (c) Buyer shall pay for all accepted Deliverables and services performed prior to termination; (d) All provisions intended to survive termination shall remain in effect.

10.5 Survival. Articles 5 (Intellectual Property Rights), 6 (Confidentiality), 9 (Indemnification and Liability), and 12 (General Provisions) shall survive termination or expiration of this Agreement.

EXECUTION

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the Effective Date.

MICROSOFT CORPORATION

By: ______________________________

Name: Sarah Chen
Title: Vice President, Procurement
Date: ____________________

TECHCORE SOLUTIONS, INC.

By: ______________________________

Name: Michael Rodriguez
Title: Chief Executive Officer
Date: ____________________

EXHIBITS

Exhibit A: Technical Specifications (Not included in this sample)

Exhibit B: Statement of Work and Delivery Schedule (Not included in this sample)